

26VEUD01655 26VEUD01655

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Case Number: 26VEUD01655 Hearing Date: September 3, 2026 Dept: T

26VEUD01655 MAHDAVY V JAMES

[TENTATIVE] ORDER: Plaintiff Sedigheh Ghaiemy Mahdavy's Amended Motion for Tenant's Violation and Mandatory Enforcement of Eviction is DENIED.

Introduction

Plaintiff Seigheh Ghaiemy Mahdavy's (Plaintiff) moved for an order to evict Defendant Bryan James (Defendant) from the property.

Discussion

Plaintiff provides a summary of Defendant's breaches of the lease and Defendant's damages to the property. Based upon the summary of facts and Plaintiff's evidence, Plaintiff is requesting an order to evict Defendant. Plaintiff is essentially requesting the Court to enter judgment for possession in favor of Plaintiff prior to trial. However, Plaintiff failed to present any legal authority that would allow the Court to enter a judgment of possession in favor of Plaintiff without a trial. Without any legal authority to support Plaintiff's request, the motion is unpersuasive. At minimum, Plaintiff's request is premature since trial has not yet been conducted.

Plaintiff's amended motion is DENIED.

[TENTATIVE] ORDER: Defendant Bryan James' Motion for Judgment on the Pleadings is GRANTED WITHOUT LEAVE TO AMEND.

Introduction

Defendant Byran James (Defendant) moved for judgment on the pleadings against Plaintiff Seigheh Ghaiemy Mahdavy's (Plaintiff) Complaint.

Discussion

California unlawful detainer law requires strict compliance with all statutory and local notice prerequisites. A valid notice to quit is a prerequisite to an unlawful detainer action, and "because of the summary nature of an unlawful detainer action, a notice is valid only if the lessor strictly complies with the statutorily mandated notice requirements." (Gonzalez v. Bolanos (2025) 116 Cal.App.5th Supp. 12, 22; City of Alameda v. Sheehan (2024) 105 Cal.App.5th 68, 81-82.)

Defendant asserted that the Notice to Quit attached to the Complaint failed to comply with the Los Angeles Rent Stabilization Ordinance (LARSO). LARSO required the Notice to Quit to contain "specific facts to permit a determination of the date, place, witnesses and circumstances concerning the eviction reason." (L.A. Mun. Code sec. 151.09.C.) Failure to strictly comply with the LARSO requirements to state specific facts on the notice to quit results in dismissal of the unlawful detainer action. Plaintiff's "3-Day Notice to Quit" attached to the Complaint identifies the breach as: "You agree that neither you will (1) engage in any criminal activity of any kind trespassing my back yard main house and violation of the provisions of this considered a breach of the lease agreement and good cause for immediate termination of your tenancy. You have been observed broken portion of fence, broken cover utility box, cut my expensive tree, spray oily grease in main door, security door, garage door main house. [Sic.]" (Compl. Exh. 2.) The statement of the breach in Plaintiff's Notice to Quit failed to state specific facts and specifically failed to state the date, place, witnesses and circumstances concerning the eviction reason. Because Plaintiff's Notice to Quit failed to strictly comply with the LARSO requirement, the defect is not curable and good cause to grant the motion is presented. Plaintiff argued that the Notice to Quit was based upon Defendant's misconduct and the facts alleged in Plaintiff's application for a civil harassment order. However, Plaintiff failed to present any legal authority for the contention that the facts from an Application for a Civil Harassment Order can be incorporated into a Notice to Quit. Plaintiff's contention and/or facts to assert that the pleading defect can be cured is insufficient and untimely. Plaintiff's argument that the notice to quit complies with the LARSO is unpersuasive. Because of the failure to state specific facts on the Notice to Quit regarding the breach, there is good cause to grant the motion.

Defendant further asserted that the Complaint failed to attach a copy of the alleged written lease. A review of the attachments to the Complaint show that no lease was attached. Plaintiff asserted that the City approved an SB9 Urban Lot Split and the leased "storage room" gained its own address. When Plaintiff presented to Defendant a new lease identifying the new address, Defendant refused to sign it. However, the contention does not address the issue raised. Plaintiff was required to attach the written lease that was in existence when Defendant first took possession. Because no lease was attached to the Complaint, the Complaint does not comply with the statutory requirements. Because strict compliance is required, there is grounds to grant the motion.

The motion for judgment on the pleadings is GRANTED WITHOUT LEAVE TO AMEND. The case is dismissed without prejudice.